04 November 2025

Mr. Iwan
Trip Manager
ARBA TRAVEL & TOURS SDN BHD
K-3-01, Conezion, Persiaran IRC3,
IOI Resort City, 62502 Selangor, Malaysia
Tel : +6 03 8687 4950 Email : operation@arbatravel.com

RE: GENERAL CONTRACT RATES AGREEMENT FROM 01 JANUARY 2026 TO 31 DECEMBER 2026

Dear Mr. Iwan,

Greetings from Ming Garden Hotel & Residences, Kota Kinabalu, Sabah!

We would like to take this opportunity to thank you for your support and please find attached the **2026** wholesale contract rates applicable for all market segments and subject to the conditions attached.

There are an attractive range of options within our rates, all year round tactical promotion, value add for this new season. You may select any one of these options for your individual client reservations. Please indicate clearly on both the reservation advice and voucher which option the client has selected.

Ming Garden Hotel & Residences a brand new Hotel situated near the junction of several thoroughfares, our strategic location along the Coastal Highway allows fast access to Kota Kinabalu's central business, commercial and places of interest. Located within minutes from the airport, main bus terminal and jetty, this hotel is indeed the ideal choice of accommodation for business and leisure. As traveller has becoming more demanding on Information Technology services that includes connectivity, we have internet & wifi available on complimentary in all guest rooms & public area.

Would you please acknowledge your acceptance of the Rates and Conditions, by signing this original letter and returning a copy within seven days from the dates shown on this letter.

This agreement, including the rates contracted, will not be valid with our hotel until a copy signed by your company is received in this office.

We look forward to foster an even closer working relationship with you and your esteemed establishment and nevertheless, a brand new season of business opportunity for mutual benefits.

Please feel free to contact me at +6012 712 1405 should you require for any further inquiries or assistance.

Warmest regards,



Precella Nuni
Assistant Director of Sales
Ming Garden Hotel & Residences

CONTRACT RATES FOR GENERAL MARKET
01 JANUARY 2026 TO 31 DECEMBER 2026

ROOM TYPES	WHOLESALE (TA'S) RATES ROOM & BREAKFAST
SUPERIOR ROOM (KING/TWIN)	**MYR 220.00**
DELUXE ROOM (KING/TWIN)	**MYR 240.00**
PREMIER ROOM ***Includes Premier Club Benefits*	**MYR 400.00**
EXECUTIVE SUITE ***Includes Premier Club Benefits*	**MYR 440.00**
RESIDENCE ONE BEDROOM	**MYR 290.00**
RESIDENCE TWO BEDROOM	**MYR 380.00**
MING SUITE ***Includes Premier Club Benefits*	**MYR 600.00**

- Room Rates quoted are inclusive of daily breakfast applicable for two persons per room per night except the Residence Two Bedroom & Ming Suite is inclusive of daily breakfast for three persons.
- All room rates are quoted in Malaysian Ringgit (MYR), and are inclusive of 8% SST and service charge.Rates are net, non-commissionable.
- A maximum of two (2) adults are permitted to share one room in the existing bedding.
- For 3rd third person sharing the same room, extra bed is available at MYR 75.00nett per bed per night with inclusive of breakfast and at additional of MYR 180.00nett for Premier, Executive Suite and Ming Suite room category.

TOURISM TAX IMPLEMENTATION

- The foreign national is residing in this country with a status as an "employee" to a company that operates in this country.
- The foreign national is only eligible for the exclusion of Tourism Tax where the employer's company is headquartered in a centralized location in Malaysia.
- The foreign national must own a legal 'work permit' issued by the Immigration Department of Malaysia.
- Therefore, all overseas/ foreign workers and cabin crew, as stated by the Hotel, that do not comply with the conditions set out as above, is subject to Tourism Tax (strictly no exemption).
- Tourism Tax: additional of **RM 10nett/per room/per night** will be implemented for Tourism Tax for all Hotels in Malaysia, which will be collected by the Hotel upon check in.

PEAK SEASON SURCHARGE

An additional surcharge is apply to all room categories

DATES	SURCHARGES
New Year's Eve 21 December 2025 to 03 January 2026	MYR 60.00nett per room per night
Chinese New Year 16 February 2026 to 23 February 2026	MYR 60.00nett per room per night
Summer Holiday 15 July 2026 to 20 August 2026	MYR 60.00nett per room per night
New Year's Eve 21 December 2026 to 03 January 2027	MYR 60.00nett per room per night

**All room reservation requests are subject to availability and management discretion

MEAL RATES – ADDITIONAL BREAKFAST CHARGES

Meal	Breakfast
Adult (13 years old & above)	MYR 50.00
Child (5 to 12 years old)	MYR 25.00
Child (below 4 years old)	Complimentary

- The above meals are served at Golden Dew Bistro, Lobby
- The meal prices are quoted in Malaysian Ringgit (MYR) are inclusive of 8% SST. Rates are net, non-commissionable. They will be charged as per your voucher or prepayment, regardless of consumption.
- The above price are not applicable in conjunction with any other promotions i.e. Ramadhan Month, Chinese New Year Eve's & Day, Christmas Eve & Day and New Year's Eve & Day.
- Dinner reservation which falls on special occasion will be an additional charge depending on our menu prices. (e.g. Valentine's Day / Mother's Day & Father's Day)
- Buffet Lunch is applicable for 30 persons and above and served at Golden Dew Bistro, Lobby

FAMILY PLAN

- The following combinations apply under sharing basis using existing bedding:
  a) 2 Adults or
  b) 2 Adults with 2 Children aged 4 years and below or
  c) 1 Adult with 3 Children aged 4 years and below
  The above are applicable for room only. Extra bed is only applicable for all room categories.

- Maximum 2 children aged 4 years and below will enjoy complimentary buffet meals when accompany by both parents who are dining in Golden Dew Bistro.

TERMS & CONDITIONS OF WHOLESALE CONTRACT

Rates

- All room rates are quoted in Malaysian Ringgit (MYR), are inclusive 8% SST. Rates are net, non-commissionable. We reserve the right to review these rates subject to fluctuation in exchange rates and by changes to local tax.
- Rates are not applicable to Meetings, Incentives, Conventions and Exhibitions (M.I.C.E) and Corporate groups; please contact our Sales Department for case by case proposals.
- Rates should not be sold or featured as "room only" but should be packaged with meals, transfers and airfares.
- The rates provided in this F.I.T Rate Agreement are for the sole purpose of sale by The Agency via a traditional wholesale distribution system and not through the internet. The rates must never be exposed to the consumer or the general public, and may incorporate the participation of a retail agent (s).
- Hotel reserves the right to adjust agreed rates within the contract period in the event of changes in government legislations concerning tax and service charge during the tenure of this contract.

Cancellation/No Show/Early Departure

Unless otherwise agreed and approved payments are due 7 days before arrival. Without receipt of the pre-payment, the booking will be automatically released. **Any cancellation as well as no show within 72 hours prior to arrival, the Hotel reserves the right to charge a late cancellation or no-show fee equivalent to the contracted rate for one (1) night for each room cancelled or unutilized.** The late cancellation or no-show fee shall, at the discretion of the Hotel, be deducted or set-off against the Wholesaler's pre-payment or charged directly to the Wholesaler and must be paid within 30 days of the date of the relevant invoice.

Allocation

The Hotel may at its discretion provide an allocation of rooms for wholesale FITs for use under this agreement. Rates and offers within this agreement are only valid for reservations made directly with the Hotel. The Hotel reserves the right to reduce or withdraw these allocations, either for the duration of this agreement or a shorter period, if materialization proves unsatisfactory or business demands warrant. The Hotel will only accept reservations outside of allotment if allotment is 100% sold and rooming lists is provided unless written request is made and approved by the Hotel in advance.

Allocation Report & Release

The Wholesaler must ensure that the Hotel receive rooming list with flight details before the release/cut-off period as stipulated within this agreement. Allocated space will be automatically released if no details are received at cut-off date. Any reservations received on or after the cut-off date will be subject to availability and in peak season, may be charged at the Hotel's published rack rates.

Rooming lists and/or allocation reports are to be sent to:
The Reservations Manager
Ming Garden Hotel & Residence
Tel: +60 88 528 888
Fax: +60 88 528 889
Email: group-rsvn@minggardenhotel.com

Check-In/Checkout Times

Check-in time shall be after 2.00pm (local time) and checkout time shall be before 12.00noon (local time) on the relevant day. Any request for early check-in, or late checkout, will be subject to the Hotel's sole discretion, which shall be based on, inter alia, the Hotel's room availability on the relevant day. Subject to the foregoing, no request for early check-ins will be entertained unless such request is made no later than 18 hours before the proposed time of early check-ins.

Day-Use Policy/Late Checkout

Save for any late checkouts agreed by the Hotel, the Hotel shall charge **RM100.00nett** per room for any checkout at or after 12.00noon (local time) but before 6.00pm (local time), and the full contracted room rate for any checkout at or after 6.00pm (local time). This clause shall not, in any case, apply to the first day/night of use of the relevant room, for which the full contracted room rate shall be payable.

Room Descriptions

Exact room type names (as indicated in this agreement) must be used in all communication with consumers. This refers to both vacation brochures and consumer confirmation documents.

Payment

A) Deposit

Without prejudice to anything herein, the Hotel reserves the right to demand a non-refundable deposit equivalent to one night's contracted rate for each room reserved which shall be paid 30 days before the arrival date.

B) Pre-payment

Unless prior credit arrangements have been made with the Hotel, full pre-payment for each room reserved at least 14 days prior to arrival shall be made by the Wholesaler. The Hotel reserves the right to cancel the reservation of any reserved rooms that have not been fully pre-paid for.

C) Payment Instruction

All deposits or pre-payment shall be made either through telegraphic transfer to the account below or by way of bank draft/cheque that is acceptable for presentation at a bank in Malaysia. Telegraphic transfers shall be made to the account hereinafter specified, with a copy of the remittance advice delivered to the Hotel.

Payable to	:	**YOUFU (MALAYSIA) SDN BHD**
Bank	:	UNITED OVERSEAS BANK (MALAYSIA) BERHAD
Address	:	BANGUNAN UOB, 70, JALAN GAYA, 88000 KOTA KINABALU,
Account No.	:	**615-308-386-7**
Swift Code	:	UOVBMYKLXXX

If payment is made in currency other than the currency contracted, the Hotel shall reserve the right to convert the payment at such foreign exchange rate quoted by its account bank and the Wholesaler shall indemnify the Hotel against any loss arising from the conversion. All payments made under this Agreement shall be made free and clear of any withholding tax, deduction and counterclaim.

D) Credit Arrangement

The Hotel may extend up to 30-day credit terms to the Wholesaler, subject to such terms and to such maximum amount as may be prescribed by the Hotel in its absolute discretion from time to time. If such credit terms are extended to the Wholesaler, the Wholesaler may reserve rooms at the Hotel without pre-payment as set out under Clause Payment (B). However, any credit arrangement shall not prejudice any of the other rights of the Hotel, including, without limitation, its right to demand for deposits and to cancel any reservation pursuant to the terms herein.

If the Wholesaler breaches any of the terms of this Agreement, exceeds any credit terms or credit limits, fails to make any payment when due or becomes or threatens to become insolvent, the Hotel reserves the right to cancel the Wholesaler's credit arrangements and demand immediate payment of all amounts due, owing or payable to the Hotel including any prepayment as stipulated under Clause Payment (B).

E) Billing Arrangements

Upon departure of the relevant booking(s), the Hotel shall deliver to the Wholesaler invoice(s) outlining the charges incurred by the booking(s). All charges outstanding under any invoice shall be payable no later than thirty (30) days from the date of invoice.

If the Wholesaler fails to pay any of the outstanding charges by the due date for payment, the Hotel shall be entitled to withdraw all credit arrangements, whether extended pursuant to Clauses Payment (D) & (E) or otherwise, without prejudice to the Hotel's other rights against the Wholesaler. It is also agreed that the Hotel shall be entitled to levy a late payment charge on any outstanding and overdue sums at the rate of 1% per month from the date when the outstanding sum becomes due until the date
on which full payment is made. If the amounts due remain outstanding for more than sixty (60) days from the date of invoice, the Hotel reserves the right to suspend the performance of this Agreement until full payment is received from the Wholesaler and/or terminate this Agreement without prejudice to any other action it may take with regard to such non-payment against the Wholesaler

Sub-Selling

The Wholesaler strictly undertakes (a) not to sell or assign any room/meal reservation or allocation to any third party or disclose the rates quoted by the Hotel to any party whatsoever, whether directly or indirectly (including, without limitation, through the internet) and (b) not to utilise any room/meal reservation or allocation other than for packaged booking(s)/customer(s) (which package shall include flight and accommodation) directly arranged or led by the Wholesaler, unless prior written approval is given by the Hotel.

Renovation

The Hotel reserves the right, upon giving reasonable notice to the Wholesaler (save for force majeure or events referred to in Clause 10 or circumstances beyond the control of the Hotel), to close any part of its facilities and to carry out such repairs, renovation/s and upgrades to the Hotel from time to time and at any time as it deems fit in its absolute discretion. Should the Hotel undergo a renovation or rebranding process (change of Owner), the new contract rates will apply and supersede the rates quoted above.

Impossibility of Performance

The Hotel shall be relieved of its obligations hereunder in the event and to the extent its performance of this Agreement is delayed or prevented in whole or in part by any cause beyond its control, including, without limitation, acts of God, change of laws, war, civil unrest, fire, flood, earthquake or explosion, sale, nationalisation or expropriation of the Hotel, necessary and essential construction to the Hotel, seizure of the Hotel under legal process, strikes, lockouts or work stoppages.

Indemnity

The Wholesaler shall be responsible at all times for the behaviour of any member of any booking(s) and for ensuring that any member of any relevant booking(s) abide by the Hotel's rules and regulations for the time being in force of the Hotel. The Wholesaler hereby undertakes to indemnify and to keep indemnified the Hotel Company and the Hotel against any claim, loss (including loss of profit), damage, cost or expense suffered or incurred by the Hotel Company and/or the Hotel arising from or in connection with any breach by it of any of the terms of this Agreement.

Exclusion of Liability

It is agreed that the Hotel Company and the Hotel shall not be liable to the Wholesaler or any other person for any loss, damage, liability, expenses or costs suffered or incurred by the Wholesaler or any member of any booking(s), including any loss, damages, liability, expenses and costs arising from any loss of, damage to or theft of property, unless such loss, damage, liability, expenses and costs resulted directly from the gross negligence or wilful default of the Hotel Company and/or the Hotel.

Wholesaler not an Agent

The Wholesaler is not authorised and shall not make any representation, warranty or undertaking on behalf of or in respect of the Hotel without the prior written consent of the Hotel. Save as explicitly provided for in this Agreement, the Wholesaler is not an agent of and shall not enter into any contract or arrangement on behalf of the Hotel.

Amendment

Notwithstanding anything in this Agreement, the Hotel may at any time and from time to time amend, vary and/or supplement the terms of the Agreement by giving at least 14 days' written notice to the Wholesaler prior to the date on which such amendment, variation and/or supplement is to take effect and such amendment, variation and/or supplement shall be valid and binding against the Wholesaler.

Confidentiality

A) All information contained in this Agreement is private and confidential and may not be disclosed to third parties for whatever reason or purpose.

B) For the avoidance of doubt, if the rates contracted herein are offered, sold or made available to any party without the prior written consent of the Hotel, this Agreement will automatically be terminated without prejudice to the Hotel's rights against the Wholesaler.

Termination

A) This Agreement may be terminated by the Hotel immediately in the event of any breach by the Wholesaler of (a) its payment obligations under this Agreement; or (b) its other obligations under this Agreement which, if in the opinion of the Hotel is capable of remedy, is not remedied to the satisfaction of the Hotel within 30 days (or such shorter period as the Hotel may require) from the date of notice from the Hotel.

B) Either party may terminate this Agreement for any reason whatsoever by giving the other party 15 days' prior written notice of termination.

C) Upon termination of this Agreement, the Wholesaler's credit arrangements (if any) shall automatically cease and all amounts due or owing by the Wholesaler to the Hotel under this Agreement shall be immediately due and payable. The Hotel shall be entitled to levy a late payment charge on any outstanding and overdue sum at the rate of 1% per month from the due date until the date on which full payment is made.

C) Any termination of this Agreement shall not prejudice any of the parties' rights or obligations that have accrued prior to termination and shall not relieve the Wholesaler's duty of confidentiality referred to in Clause 17.

Assignment

The Wholesaler may not assign or transfer any of its rights and obligations under this Agreement.

Miscellaneous

A) Notices
Unless otherwise stated in this Agreement, any notice or other communication required to be given under this Agreement shall be in writing and sent to the address and/or facsimile numbers of the recipient set out in this Agreement or such other address or facsimile numbers as the recipient may designate by notice given in accordance with the provisions of this clause. Any such notice or communication shall be deemed to have been made:
(i) Within 48 hours from date of posting, if delivered by post; or
(ii) Immediately if successfully transmitted by facsimile.

B) Interpretation
The phrases "Agreement" and "Wholesale Agreement" wherever used shall refer to these Terms and Conditions and the Schedules, as the same may be amended, supplemented and/or varied from time to time.

C) Severability
If any provision of this Agreement or any part thereof is determined to be invalid, unlawful or unenforceable, then such provision shall be deemed to be deleted, without affecting the remaining provisions of this Agreement.

Governing Law

This Agreement shall be construed and governed by the laws of MALAYSIA and the parties submit to the non-exclusive jurisdiction of the Courts of the enter country name.

The above rates are subject to acceptance of the Terms & Conditions as stated herein. The Wholesale Agreement is only valid for a period of **7 days** from the date of issuance during which time a duly signed copy should be returned to the hotel. If unsigned, the given rates will not be applicable and the hotels' promotional rate will be applied for any confirmed bookings.

SIGNED FOR AND ON BEHALF OF:
Ming Garden Hotel & Residences



PRECELLA NUNI
Asst. Director of Sales



Ms. Ann Chang
Director of Sales

SIGNED FOR & ON BEHALF OF THE REGISTERED COMPANY:



Authorised Signature :
Name : **Ahmad Suaidi Bin Saari**
Designation : **Tour Product Specialist**
Date : **25 Nov 2025**
Company Stamp :

